

STATE OF NEW YORK

4045--C

2025-2026 Regular Sessions

IN SENATE

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Introduced by Sens. GOUNARDES, BAILEY, BRISPORT, BROUK, CLEARE, COMRIE, COONEY, FAHY, GIANARIS, GONZALEZ, HARCKHAM, HINCHEY, HOYLMAN-SIGAL, KRUEGER, LIU, MARTINEZ, MAY, MAYER, MYRIE, RAMOS, RIVERA, C. RYAN, SALAZAR, SEPULVEDA, SERRANO, SKOUFIS, WEBB, WEBER -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported favorably from said committee and committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law and the general municipal law, in relation to requiring the installation of intelligent speed assistance devices for repeated violation of maximum speed limits

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The vehicle and traffic law is amended by adding a new
2 section 119-c to read as follows:

3 § 119-c. Intelligent speed assistance device. A device which is
4 installed in a motor vehicle and utilizes technology to limit the speed
5 of a motor vehicle at five miles per hour more than the maximum speed
6 limits established pursuant to title eight and article thirty of this
7 chapter. The technology shall allow for slight acceleration past the
8 speed limit, if necessary, based on traffic conditions.

9 § 2. Subdivision (h) of section 1180 of the vehicle and traffic law is
10 amended by adding a new paragraph 6 to read as follows:

11 6. (i) Upon a conviction or convictions for any violation or set of
12 violations of subdivision (b), (c), (d), (f) or (g) of this section
13 which results in an accumulation of eleven or more points on the driving
14 record of any person for violations of such subdivisions that occurred

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 during the preceding eighteen month period, the commissioner shall, in
2 addition to the imposition of any fine or period of imprisonment or
3 sanction set forth in this chapter, order a hearing by the administra-
4 tive tribunal created pursuant to article two-a of this chapter, or by a
5 traffic violations bureau created pursuant to section three hundred
6 seventy of the general municipal law, or, if there be none, by the court
7 having jurisdiction over traffic infractions where the violation
8 occurred or over a criminal charge relating to traffic or a traffic
9 infraction to determine whether such person shall install and maintain
10 an intelligent speed assistance device under this paragraph. The proce-
11 dure of such hearing shall be governed by the provisions of the applica-
12 ble law or regulation that govern such tribunal, bureau, or court.
13 Whenever the tribunal, bureau or court finds, after such hearing, that
14 such person has accumulated eleven or more points within the preceding
15 eighteen month period, the tribunal, bureau or court shall order the
16 installment of an intelligent speed assistance device in any motor vehi-
17 cle owned or operated by such person for a minimum period of time as
18 prescribed in subparagraph (iii) of this paragraph. The person shall
19 then provide proof of installation as outlined in subparagraph (iv) of
20 this paragraph and pursuant to such order. The period of time
21 prescribed in subparagraph (iii) of this paragraph shall commence on the
22 date of the installation of the intelligent speed assistance device.

23 (ii) (A) Upon the finding of vehicle owner liability for failure of an
24 operator to comply with certain posted maximum speed limits through a
25 photo speed violation monitoring system pursuant to section eleven
26 hundred eighty-b of this article, where such person has been found
27 liable for notices of liability for no less than sixteen notices of
28 liability for such vehicle for failure to comply with such limits within
29 the past twelve months, the commissioner shall order a hearing by the
30 administrative tribunal created pursuant to article two-a of this chap-
31 ter to determine whether such person shall install and maintain an
32 intelligent speed assistance device under this paragraph. The procedure
33 of such hearing shall be governed by the provisions of the applicable
34 law or regulation. Whenever the tribunal finds, after such hearing, that
35 such person has been found liable for notices of liability for no less
36 than sixteen notices of liability within the past twelve months, the
37 tribunal shall order the installment of an intelligent speed assistance
38 device in any motor vehicle owned or operated by such person for a mini-
39 imum period of time as prescribed in subparagraph (iii) of this para-
40 graph. The person shall then provide proof of installation as outlined
41 in subparagraph (iv) of this paragraph and pursuant to such order. The
42 period of time prescribed in subparagraph (iii) of this paragraph shall
43 commence on the date of the installation of the intelligent speed
44 assistance device.

45 (B) Notwithstanding any provisions of this paragraph to the contrary,
46 where a municipality does not utilize a photo speed violation monitoring
47 system pursuant to section eleven hundred eighty-b of this title, such
48 municipality may require the installation of an intelligent speed
49 assistance device under this paragraph for the top one percent of
50 persons who receive notices of liability for failure to comply with
51 posted maximum speed limits as documented through the use of a photo
52 speed violation-monitoring system. Where a person has been found liable
53 for sufficient notices of liability at such threshold for failure to
54 comply with such limits within the past twelve months, the commissioner
55 shall order a hearing by the traffic violations bureau created pursuant
56 to section three hundred seventy of the general municipal law, or, if

1 there be none, by the court having jurisdiction over traffic infractions
2 where the violation occurred or over a criminal charge related to traf-
3 fic or a traffic infraction, to determine whether such person shall
4 install and maintain an intelligent speed assistance device under this
5 paragraph. The procedure of such hearing shall be governed by the
6 provisions of the applicable law or regulation. Whenever the tribunal
7 finds, after such hearing, that such person has been found liable for
8 such notices of liability within the past twelve months, the tribunal
9 shall order the installment of an intelligent speed assistance device in
10 any motor vehicle owned or operated by such person for the minimum peri-
11 od of time as prescribed in subparagraph (iii) of this paragraph. The
12 person shall then provide proof of installation as outlined in subpara-
13 graph (iv) of this paragraph and pursuant to such order. The period of
14 time prescribed in subparagraph (iii) of this paragraph shall commence
15 on the date of the installation of the intelligent speed assistance
16 device.

17 (iii) Where a person is mandated to install an intelligent speed
18 assistance device for the first time under this subdivision, such person
19 shall be required to install such device in any motor vehicle owned or
20 operated by such person for a period of twelve months. At the conclusion
21 of the twelve-month period, provided that the person has successfully
22 completed the term of installation with no further violations described
23 in subparagraph (i) or (ii) of this paragraph, the commissioner shall
24 provide a letter authorizing the removal of such device. Where a person
25 is mandated to install an intelligent speed assistance device a second
26 time under this subdivision within ten years of completing the first
27 term of installation, such person shall be required to install such
28 device in any motor vehicle owned or operated by such person for a peri-
29 od of twenty-four months. At the conclusion of the twenty-four month
30 period, provided that the person has successfully completed the term of
31 installation with no further violations described in subparagraph (i) or
32 (ii) of this paragraph, the commissioner shall provide a letter author-
33 izing the removal of such device. Where a person is mandated to install
34 an intelligent speed assistance device a third time under this subdivi-
35 sion within fifteen years of completing the first term of installation,
36 such person shall be required to install such device in any motor vehi-
37 cle owned or operated by such person for a period of thirty-six months.
38 A person who is mandated to install an intelligent speed assistance
39 device for a fourth or subsequent time under this subparagraph shall not
40 remove such device until such time as the commissioner approves such
41 removal.

42 (iv) Proof of installation of a speed limiter required under this
43 paragraph shall occur within ten days of the tribunal, bureau or court
44 order described in subparagraphs (i) and (ii) of this paragraph.

45 (v) The cost of installing, leasing, maintaining, and removing an
46 intelligent speed assistance device shall be borne by the person subject
47 to the tribunal, bureau or court order described in subparagraphs (i)
48 and (ii) of this paragraph, unless such tribunal, bureau or court deter-
49 mines that such person is unable to financially afford the cost of the
50 device, in which case such cost may be imposed pursuant to payment plan
51 or waived. A person shall be presumptively unable to afford the cost of
52 the device if they receive public assistance benefits under the social
53 services law. Within thirty days after the initial installation of an
54 intelligent speed assistance device, the device shall be inspected by a
55 qualified service center to ensure the device is properly installed. The
56 commissioner shall promulgate regulations governing the monitoring of

1 compliance by the department of persons ordered to install and maintain
2 intelligent speed assistance devices.

3 (vi) At the end of the required installation period a device shall be
4 returned to the qualified service provider that installed the device.
5 If deemed to be in working order after being returned to such qualified
6 service provider, the device may be installed on any other motor vehicle
7 required to have such device installed under this paragraph.

8 (vii) The commissioner shall create a list of approved intelligent
9 speed assistance devices and update such list no less than once every
10 two years. Approved intelligent speed assistance devices must be capa-
11 ble of accurately detecting speed limits across road and weather condi-
12 tions, and the commissioner may promulgate any rules and regulations
13 necessary to further ensure that devices operate reliably.

14 (viii) The commissioner shall create a list of service providers which
15 are qualified to install, service, inspect, and remove approved intelli-
16 gent speed assistance devices and shall update such list no less than
17 once every two years.

18 (ix) The commissioner shall promulgate regulations governing the moni-
19 toring of compliance by the department of persons ordered to install and
20 maintain intelligent speed assistance devices, including but not limited
21 to reporting by the vendor of the intelligent speed assistance device on
22 tampering, unauthorized removal, or other similar violations.

23 (x) The commissioner shall develop a method by which a peace officer
24 may easily determine by visual inspection of a motor vehicle whether
25 such vehicle is required to have an intelligent speed assistance device
26 installed. For the purposes of this subdivision, "peace officer" has the
27 same meaning as in section 2.10 of the criminal procedure law.

28 (xi) (A) No person shall tamper with or circumvent an otherwise
29 operable intelligent speed assistance device.

30 (B) No person subject to the order described in subparagraph (i) or
31 (ii) of this paragraph shall operate a motor vehicle without such
32 device, including but not limited to operating a motor vehicle without
33 the ordered device after the ten day installation period.

34 (C) No vehicle owner shall operate, or permit another person to oper-
35 ate, a motor vehicle that they own without an intelligent speed assist-
36 ance device when such vehicle is mandated to have such device.

37 (D) In addition to any other provisions of law, any person convicted
38 of a violation of clause (A), (B) or (C) of this subparagraph shall be
39 guilty of a class A misdemeanor.

40 (xii) A violation of any provision of this paragraph, or a finding
41 that any person has assisted a driver to violate this paragraph, may be
42 charged with a class A misdemeanor.

43 (xiii) This paragraph shall not apply to motor vehicles operated by a
44 person subject to an order to install and maintain an intelligent speed
45 assistance device as described in subparagraph (i) or (ii) of this para-
46 graph where such person is required to operate such vehicle in the
47 course and scope of such person's employment and such vehicle is owned
48 by such person's employer. A motor vehicle owned by a business entity
49 where such business entity is owned or partly owned or controlled by a
50 person otherwise subject to a court ordered intelligent speed assistance
51 device under this paragraph is not a motor vehicle owned by the
52 employer for purposes of the exemption provided in this subpara-
53 graph.

54 (xiv) (A) The commissioner shall submit a report every twenty-four
55 months on the results of the use of the program to the governor, the
56 temporary president of the senate and the speaker of the assembly begin-

1 ning on or before June first next succeeding the effective date of this
2 paragraph. Such report shall include without limitation the following
3 information:

4 (1) Number of individuals actively required to have intelligent speed
5 assistance devices installed in motor vehicles they own or operate on an
6 annual basis, disaggregated by the number of individuals required to
7 install intelligent speed assistance devices under subparagraph (i) of
8 this paragraph and the number of individuals required to install intel-
9 ligent speed assistance devices for failure to comply with certain post-
10 ed maximum speed limits through a photo speed violation monitoring
11 system under subparagraph (ii) of this paragraph.

12 (2) Number of motor vehicles required to have intelligent speed
13 assistance devices installed on an annual basis.

14 (3) Number of fee waivers approved to waive the entire fee for
15 installing an intelligent speed assistance device on an annual basis.

16 (4) Number of individuals placed on a payment plan for an intelligent
17 speed assistance device on an annual basis.

18 (B) To the extent the information is maintained by the department of
19 motor vehicles in this state, the report shall include the following
20 information about the intelligent speed assistance device program under
21 this paragraph, on an annual basis:

22 (1) Number of speeding tickets issued to individuals with intelligent
23 speed assistance devices installed.

24 (2) Number of other traffic infractions committed by individuals with
25 intelligent speed assistance devices installed, organized by category or
26 type of traffic infraction.

27 (3) Number of reported accidents involving individuals with intelli-
28 gent speed assistance devices installed.

29 (4) Number of known individuals who have not complied with the
30 provisions of this paragraph, separated by three categories: not
31 initially installing a device as required, removing the device before a
32 follow-up inspection, and being cited for not having a device properly
33 installed during a traffic stop.

34 (C) Such report shall also be made publicly available on the depart-
35 ment of transportation and department of motor vehicles websites.

36 (xv) The commissioner may promulgate any rules and regulations neces-
37 sary to implement the provisions of this paragraph.

38 § 3. The purchase or lease of equipment for a demonstration program
39 established pursuant to paragraph 6 of subdivision (h) of section 1180
40 of the vehicle and traffic law, as added by section two of this act,
41 shall be subject to the provisions of section 103 of the general municip-
42 al law.

43 § 4. The section heading and paragraph (c) of subdivision 1 of section
44 514 of the vehicle and traffic law, the section heading as amended by
45 chapter 406 of the laws of 2001 and paragraph (c) of subdivision 1 as
46 amended by chapter 892 of the laws of 1983, are amended to read as
47 follows:

48 Certifying convictions, findings of liability, forfeitures and nonap-
49 pearances to the commissioner and recording convictions and findings of
50 liability.

51 (c) Notwithstanding the provisions of paragraphs (a) and (b) of this
52 subdivision, the commissioner may prescribe time limitations for the
53 reporting of judgments of conviction or findings of liability and trans-
54 mission of such license that are longer than those prescribed by this
55 section for any courts to which this section is applicable.

1 § 5. Subdivision 3 of section 241 of the vehicle and traffic law, as
2 added by chapter 437 of the laws of 1979, is amended to read as follows:

3 3. A judgment entered pursuant to the provisions of this section shall
4 remain in full force and effect for eight years notwithstanding any
5 other provision of law. Upon entry of a final determination imposing
6 monetary liability upon a person as a motor vehicle owner for a
7 violation of subdivision (b), (d), (f) or (g) of section eleven hundred
8 eighty of this chapter pursuant to a demonstration program established
9 pursuant to sections eleven hundred eighty-b, eleven hundred eighty-f or
10 eleven hundred eighty-g of this chapter, the hearing examiner or clerk
11 thereof shall within fifteen days certify the finding of liability to
12 the commissioner in such form and in such manner as may be prescribed by
13 the commissioner, who shall record the same in their office. If any such
14 finding of liability shall be reversed upon appeal therefrom, or shall
15 be vacated, or set aside, the person whose finding of liability has been
16 so reversed, vacated, or set aside may serve on the commissioner a
17 certified copy of the appropriate order and the commissioner shall ther-
18 eupon record the same in connection with the record of such finding of
19 liability. Provided, however, that the commissioner may prescribe time
20 limitations for the reporting of judgments or findings of liability
21 regarding the imposition of monetary liability upon a person as a motor
22 vehicle owner for a violation of subdivision (b), (d), (f) or (g) of
23 section eleven hundred eighty of this chapter pursuant to a demon-
24 stration program established pursuant to sections eleven hundred eight-
25 y-b, eleven hundred eighty-f or eleven hundred eighty-g of this chapter
26 that are longer than those prescribed by this section for any bureau to
27 which this section is applicable.

28 § 6. Section 373 of the general municipal law, as added by chapter 530
29 of the laws of 1932, and as renumbered by chapter 281 of the laws of
30 1934, is amended to read as follows:

31 § 373. Records. A traffic violations bureau as herein authorized shall
32 keep a record of all violations of which each person has been guilty,
33 whether such guilt was established in court or in the bureau, and also a
34 record of all fines collected and the disposition thereof. It shall also
35 perform such other or additional duties and keep such other or addi-
36 tional records as shall be prescribed by the court and/or the local
37 legislative body. Upon a judgment of conviction of any person for any
38 violation or set of violations of subdivision (b), (c), (d), (f) or
39 (g) of section eleven hundred eighty of the vehicle and traffic law or a
40 final determination imposing monetary liability upon a person as a motor
41 vehicle owner for a violation of subdivision (b), (d), (f) or (g) of
42 section eleven hundred eighty of the vehicle and traffic law pursuant to
43 a demonstration program established pursuant to sections eleven hundred
44 eighty-f or eleven hundred eighty-g of the vehicle and traffic law, the
45 court or bureau or clerk thereof shall within fifteen days certify the
46 facts of the case to the commissioner of the department of motor vehi-
47 cles in such form and in such manner as may be prescribed by such
48 commissioner, who shall record the same in their office. Such certif-
49 icate shall be presumptive evidence of the facts recited therein. If any
50 such conviction shall be reversed upon appeal therefrom, or shall be
51 vacated or set aside, the person whose conviction has been so reversed,
52 vacated, or set aside may serve on the commissioner a certified copy of
53 the appropriate order and such commissioner shall thereupon record the
54 same in connection with the record of such conviction. Provided, howev-
55 er, that such commissioner may prescribe time limitations for the
56 reporting of judgments of conviction and transmission of such license

1 that are longer than those prescribed by this section for any courts or
2 bureaus to which this section is applicable.
3 § 7. This act shall take effect on the one hundred eightieth day after
4 it shall have become a law; provided, however, that subparagraph (ii) of
5 paragraph 6 of subdivision (h) of section 1180 of the vehicle and traf-
6 fic law, as added by section two of this act, shall take effect one year
7 after such effective date.